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Case Number: 26STCV00828 Hearing Date: August 27, 2026 Dept: 224

Chung v. Wade

TENTATIVE RULING

Defendant's demurrer to the First Amended Complaint is SUSTAINED WITH LEAVE TO AMEND based on the grounds identified below.

Plaintiff shall file a Second Amended Complaint within 20 days.

The Case Management Conference is continued to November 19, 2026 at 8:30 a.m.

ANALYSIS

Introduction

On March 2, 2026, Plaintiff Carol Chung filed a Complaint against Defendant Vicki Wade for unlawful detainer, arising out of Defendant's alleged failure to pay rent for the residential premises located at 4012 ½ W. 21st Street, Apt. #1, Los Angeles, California 90018, following service of a three-day notice to pay rent or quit.

On March 2, 2026, Plaintiff Carol Chung filed a First Amended Complaint.

On July 9, 2026, Defendant filed the instant Demurrer to Plaintiff's First Amended Complaint.

No opposition has been filed.

Meet and Confer

Before filing a demurrer or a motion to strike, the demurring or moving party is required to meet and confer with the party who filed the pleading demurred to or the pleading that is subject to the motion to strike for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the

demurrer. (CCP §§ 430.41)

Defendant has not included a declaration setting forth the meet and confer efforts of counsel for the Defendant, and counsel's attempts to resolve the discovery dispute informally pursuant to Code of Civil Procedure section 430.41. Nonetheless, the Court exercises its discretion to proceed on the merits of the demurrer.

Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Wilson v. Transit Authority of City of Sacramento (1962) 199 Cal.App.2d 716, 720-21.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not on the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Id.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn, supra, 147 Cal.App.4th at 747.)

Demurrer for Uncertainty

The special demurrer for uncertainty is overruled. The notice is attached and the manner and dates of service are alleged. The pleading is intelligible enough for defendant to respond. The identified defects go to sufficiency, not certainty, and uncertainty demurrers are disfavored. (Khouri v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

Unlawful Detainer

Defendant demurs to the First Amended Complaint on the grounds that it fails to state facts sufficient to constitute a cause of action. Namely, Defendant argues that the complaint (1) fails to allege the requisite landlord-tenant relationship (2) alleges the premises are within the City of Los Angeles but leaves the year of construction blank, so the applicable rent/eviction regulation cannot be determined; (3) fails to allege how and when the notice was served; and (4) fails to attach the notice and/or a proof of service.

CCP § 1161(2) provides that a tenant is guilty of unlawful detainer:

[w]hen he or she continues in possession, in person or by subtenant, without the permission of his or her landlord, or the successor in estate of his or her landlord, if applicable, after default in the payment of rent, pursuant to the lease or agreement under which the property is held, and three days' notice, excluding Saturdays and Sundays and other judicial holidays, in writing, requiring its payment, stating the amount which is due, . . . the number of an account in a financial institution into which the rental payment may be made, and the name and street address of the institution (provided that the institution is located within five miles of the rental property), or if an electronic funds transfer procedure has been previously established, that payment may be made pursuant to that procedure, or possession of the property, shall have been served upon him or her and if there is a subtenant in actual occupation of the premises, also upon the subtenant.

The basic elements of unlawful detainer are (1) the tenant is in possession of the premises; (2) that possession is without permission; (3) the tenant is in default under the rental agreement; (4) the tenant has been properly served with a written three-day notice; and (5) the default continues after the notice of termination period has elapsed. (See Kruger v. Reyes (2014) 232 Cal.App.4th Supp. 10, 16.)

First, the contention that Plaintiff fails to allege the landlord-tenant relationship is not well-taken. Paragraph 6a alleges defendant agreed to rent the premises month-to-month at \$1,350, and paragraph 6b(1) alleges the written agreement was

made with Plaintiff. That suffices to plead the relationship.

The contention regarding the year of construction is well taken. The FAC alleges the premises are within the City of Los Angeles (FAC ¶ 3b) but leaves the construction year blank (FAC ¶ 3c), while checking the box that the tenancy is subject to a local rent- or eviction-control ordinance (FAC ¶ 16) without identifying the ordinance, and separately alleging Tenant Protection Act exemption (FAC ¶ 7a) without stating the basis. The FAC thus fails to establish which regulatory scheme applies or that Plaintiff complied.

The contention that service of the notice is inadequately pleaded is also well taken, though Defendant mischaracterizes the pleading. Paragraph 10a(3) alleges service by posting on December 15, 2025. Posting is valid under section 1162(3) only with an accompanying mailing and only where personal and substituted service cannot be accomplished. Plaintiff checks the posting box but alleges no mailing and no predicate facts, so valid statutory service is not established.

The contention that Plaintiff attached no notice or proof of service is overruled as to the notice, which is attached as Exhibit 2 (FAC ¶¶ 9e, 20). The absence of an attached proof of service does not render the complaint subject to demurrer, service having been pleaded in paragraphs 9 and 10.

Conclusion

Defendant's demurrer to the First Amended Complaint is SUSTAINED WITH LEAVE TO AMEND based on the grounds identified above.

Plaintiff shall file a Second Amended Complaint within 20 days.

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Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.